

The Defendant made payments of \$3,153.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/23/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,150.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: N25-2474

CASE NAME: BETTY VETRO VS. TAMPICO HEALTHCARE CENTER, LLC

***HEARING ON MOTION IN RE: PETITIONERS' OSC FR TAMPICO HEALTHCARECENTER, LLC'S FAILURE TO MAKE MED RECS AVAIL & REQ FOR MONETARY SANCT IN AMT OF \$4,550.00 AGAINST TAMPICO HEALTHCARE, LLC**

FILED BY:

TENTATIVE RULING:

Background

Petitioner filed an Order to Show Cause ("OSC") on 12/3/25 for Respondent's alleged failure to produce medical records, under Section 1158(b) of the Evidence Code.

Petitioner also requested sanctions in the amount of \$4,550, under Section 1158(d).

In the instant matter, it is undisputed that Petitioner provided proper written authorization for records, and that Respondent failed to provide them within the statutory time frame of five days. Thus, the only issue remaining is that of sanctions.

Analysis

Section 1158(b) of the Evidence Code mandates that a medical provider "shall promptly make of all of the patient's records" available for inspection.

Section 1158(d) of the Evidence Code provides that the failure to provide these records within five days may render the provider liable for reasonable expenses, such as attorney fees. Section 1985.7 of the Code of Civil Procedure adds to this, compelling sanctions in the event of such a failure unless the court finds that the provider acted with substantial justification "[O]r that other circumstances make the imposition of the sanction unjust." *Id.*

The Petitioner and Respondent concede that Petitioner made initial requests for records via fax, but that these faxes – for whatever reason – did not transmit properly. Petitioner

then requested records from Respondent on 10/20/25, via email. Per the declaration of Marjorie Elks, Respondent replied two days later, on 10/22/5, via email, indicating that this would be directed to the head of their medical records department. Ms. Elks does not normally handle requests for records.

However, the head of the records department suffered a family loss, was only intermittently present at the provider over the next six to eight weeks or so, and subsequently resigned. On 1/14/26, Ms. Elks then discovered she had inadvertently missed a follow up email from counsel for Petitioner, Mr. Pick, which was sent to her on 11/20/25. In this email, Mr. Pick was explicit that he had not received the records and would have to consider legal action. It is unclear what prompted Ms. Elks to check her email for missed messages on 1/14/26, that is left unsaid. But the court notes that this occurred after Mr. Pick filed his Petition, and only 6 days before counsel for Plaintiff responded to Mr. Pick with the records. This suggests, by a preponderance, that Ms. Elks looked for Mr. Pick's email only at the beckoning of counsel for Respondent.

The pleadings show that Mr. Pick also emailed the records department of the provider two days before that, on 11/18/25. Mr. Pick declared that he made at least five attempts to contact the provider – via the records department, administrator, and Director of Nursing – and either the provider did not allow him to leave a message, or did not respond to his attempts.

Records were ultimately provided to Petitioner on 1/20/26.

Mr. Pick, in his Reply, complains of a pattern of this sort of behavior in the nursing home industry, and ascribes this behavior to an ulterior motive, which is to discourage families from pursuing meritorious lawsuits. He also refers to many phone calls he made to Respondent.

Mr. Pick declared that he spent seven hours preparing for the filing of the Petition, at a rate of \$650 per hour.

This court notes that this is not a case where Respondent simply ignored a legitimate records request, or could offer no excuse for their neglect. There appears to be an extenuating circumstance. The court finds Ms. Elks credible in that she does not normally handle records requests, and that their medical records director was largely absent,

But this court does not find that Respondent acted with substantial justification. Respondent's explanation for their neglect is not acceptable. Ms. Elks, and the provider generally, were on notice that the person solely responsible for handling medical

requests was often absent. As a medical provider, they should be well aware that one of their significant duties, one which they are legally bound to perform, is to respond to medical records requests. Ms. Elks had reason to suspect that the person in charge of this task was not capable of performing this task competently, yet rather than attempting to investigate whether any requests were, indeed, being neglected, she chose to do nothing.

This court finds it very troubling that Ms. Elks inadvertently missed the email from Mr. Pick on 11/20/25, which, in the caption, indicated it was about Records and that it was urgent, especially considering that Ms. Elks was already aware that her medical records director was having problems.

If the medical records director can't perform her job duty, does this then mean that no one at the health care center is responsible for responding to medical records requests?

What's more, Respondent offers no response to Mr. Pick's declaration that he made numerous phone calls to the records department and to the administrator (whom this court assumes is Ms. Elks), and was either prevented from leaving a message, or never received a response.

Yet this court also interprets the statutes as giving courts discretion in the amount of sanction to levy, even after finding a lack of substantial justification, and even if the sanction is less than what the court determines to be the reasonable fees. Section 1158(d) says that a failure to provide records *may* subject the provider to liability for all reasonable expenses. Section 1985.7 of the CCP compels sanctions under the previous statute unless circumstances make the imposition of that sanction unjust.

In this matter, the court finds that \$500 per hour is a reasonable amount for attorney fees in this location and area of practice, and also finds that 7 hours is a reasonable amount of time expended on the Petition in this matter.

However, this court finds that the imposition of the full amount of attorney's fees - \$3,500 – would be unjust. Respondent experienced an extenuating circumstance, and there is no evidence that their neglect is part of a larger pattern. What's more, Respondent provided the requested records prior to the initial hearing.

Thus, the court will assess half the amount, or \$1,750, as a sanction.

Disposition

Petition for Sanctions is granted in the amount of \$1,750.

Petitioner to file Order.

12. 9:00 AM CASE NUMBER: RS24-0953

CASE NAME: BG ASSET MANAGEMENT, INC. VS. LISA DAVIDSON

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT

FILED BY: DAVIDSON, LISA M.

TENTATIVE RULING:

Background

Cross Complainant Lisa Davidson filed this Motion for Leave to Amend the Cross Complaint on 12/24/25, and timely served Cross Defendant.

In the proposed Amended Cross Complaint, Cross Complainant alleges damages of well over \$100,000.

The Motion is unopposed.

Analysis

A cross-complainant can request leave of the court to file a new cause of action when the new cause of action arises from the same transaction that gave rise to the cause of action alleged in the original complaint. CCP 426.50, CCP 426.10(c). The failure to file the new cause of action in the original complaint must be for reasons such as inadvertence, or other causes. *Id.*

Trial courts must generally grant leave to amend unless the opposing party would be prejudiced by the amendment. See CCP 426.50, and *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1378.

If the statute of limitations has expired before the amended complaint is filed, the amended complaint is time-barred unless it relates back to a timely filed original complaint. *Curtis Engineering Corp. v. Superior Court* (2017) 16 CA5th 542, 548. An amendment alleging a new theory of liability against the defendant relates back to the original complaint as long as the new cause of action is based on the same general set of facts previously alleged. *Id.*

In the instant matter, the factual transaction alleged in the proposed Amended Cross Complaint is virtually identical to that in the original Cross Complaint. All the causes of action, as well as the addition of new Cross Defendants, in both the Original and proposed Amended Complaints, stem from the lease agreement between Cross-